

SENATE BILL 2395

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7; Title 8; Title 39 and Title 47,
relative to personal data.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 13, Part 6, is amended by adding the following as a new section:

(a) This section is known and may be cited as the "Fourth Amendment is Not for Sale Act."

(b) A state agency or local governmental entity, or any of its officers, employees, or contractors, that is required by § 39-13-610 or another law to be issued a warrant prior to obtaining personal information or sensitive data about an individual shall not knowingly purchase, license, or otherwise obtain the personal information or sensitive data from a controller in lieu of the warrant requirement.

(c) A officer, employee, or contractor of a state agency or local governmental entity who violates subsection (b) commits a Class B misdemeanor.

(d) It is not a violation of subsection (b) if the personal information or sensitive data is purchased, licensed, or otherwise obtained under any of the following circumstances:

(1) If necessary to respond to a call for emergency services placed by the individual to whom the personal information or sensitive data relates;

(2) To prevent imminent danger to the life of the individual to whom the personal information or sensitive data relates;

(3) To prevent imminent danger to the public;

(4) With the express, written consent of the individual to whom the personal information or sensitive data relates; or

(5) If required by federal law or a valid federal court order.

(e) As used in this section:

(1) "Controller," "identified or identifiable natural person," "natural person," "individual," "personal information," and "sensitive data" have the same meanings as defined in § 47-18-3302;

(2) "Local governmental entity" means a municipality, metropolitan government, county, utility district, local law enforcement agency, school district, public building authority, and development district created and existing pursuant to the laws of this state, or any instrumentality of government created by any one (1) or more of the named local governmental entities; and

(3) "State agency" means a state department, board, commission, and other body which carries out state functions and programs.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.